

See also: The *Lex Mercatoria* 74–77 ■ *Hadley v. Baxendale* 148–149 ■ The Workers' Accident Insurance System 164–167
 ■ The Sherman Antitrust Act 170–173 ■ The Triangle Shirtwaist Factory fire 180–183

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Has not the working man as much right to preserve and protect his labor as the rich man has his capital?

George Loveless

Tolpuddle Martyr (1797–1874)

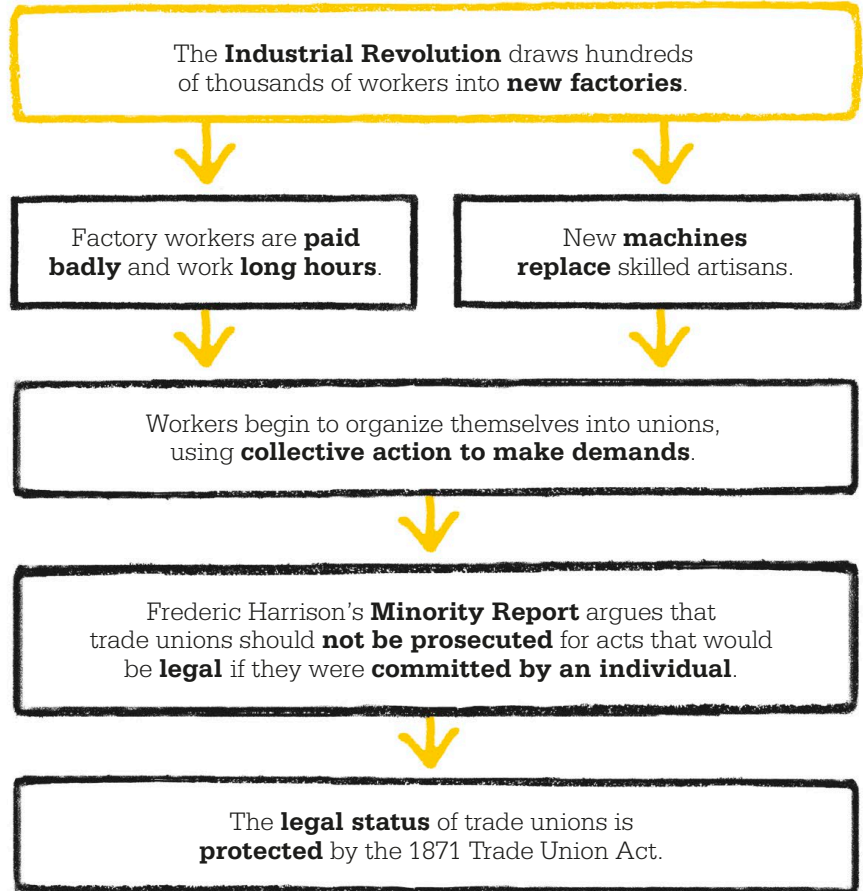
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exploited. Trade unions were formed to redress this disparity by creating organized groups of workers to collectively bargain with their employer.

From the 17th century, groups of skilled workers began forming small trade unions in Britain. In the 18th century, as the effects of the Industrial Revolution began to be felt, with machines and factories replacing handmade goods, disputes between factory owners and workers became more common. As a result of this disaffection, more trade unions were formed. The government saw these workers' movements as a threat to the economic order.

Early challenges

Britain's first major strike was that of the weavers of Calton, Scotland, who withdrew their labor in protest at a pay cut. The strike was broken only when soldiers shot six weavers dead. The Combination Acts of 1799 and 1800 served to make strike action illegal, which hampered the burgeoning trade



unions and dissuaded many workers from joining. Although the Combination Acts were repealed in 1824, a number of punitive laws against trade unions still existed, and in 1834, six agricultural workers who formed a trade union in the Dorset village of Tolpuddle were arrested and transported to Australia as punishment. The case of the “Tolpuddle Martyrs,” as they came to be known, reflected the government's continued hostility toward trade unions.

An additional challenge to trade unions came from the civil courts. Trade unions were

mostly loose groupings of skilled tradespeople who, in order to join, were required to resign some of their individual bargaining rights in favor of collective interests. British courts saw this as restraining individual freedom of contract, which was unlawful and therefore made trade union rules unenforceable in practice.

However, as the economy picked up in the 1850s and 1860s, and railway workers and engineers became increasingly important to the continued industrialization of the country, trade unions began to gain strength once again, pressing for »